

TENTATIVE RULING

Case: **Jefferson Capital Systems LLC v. Nguyen**
Case No. CV2025-2602

Hearing Date: **April 7, 2026** **Department Fourteen** **9:00 a.m.**

Defendant Chi Nguyen's motion for an order deeming admitted the truth of facts and genuineness of documents and motion to compel responses are **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., §§ 2030.290 subd. (b), 2033.280, subd. (b).) First, defendant did not file a proof of service at least five court days before the hearing, showing that plaintiff Jefferson Capital Systems LLC was properly served with the moving papers. (Cal. Rules of Court, rule 3.1300(c); see also Code Civ. Proc., § 1005, subd. (b).) Second, as to the motion to compel responses, defendant did not specify whether he seeks to compel responses to the form interrogatories, special interrogatories, or both. (Code Civ. Proc., § 2030.290 subd. (b); see also Cal. Rules of Court, rule 3.1345(d).)

The notices of motions provide notice of this Court's tentative ruling system. However, the notices do not contain the required language pursuant to Local Rule 11.2(b) (as amended, eff. Jan. 1, 2023). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

CASE: **Jennings v. Nugget Markets, Inc.**
 Case No. CV2023-1878

Hearing Date: **April 7, 2026** **Department Fourteen** **9:00 a.m.**

Defendant Nugget Markets, Inc.'s motion for leave to file a cross-complaint is **GRANTED**. (Code Civ. Proc., §§ 428.10, subd. (a), 428.50, subd. (c).) The causes of action alleged in the proposed cross-complaint are permissive, rather than compulsory, because they did not exist at the time that defendant served its answer. (Code Civ. Proc., §§ 426.50, 426.30, subd. (a), 426.10, subd. (c); *Crocker Nat. Bank v. Emerald* (1990) 221 Cal.App.3d 852, 864; Ortiz decl., ¶ 30, Exhibit K.) The Court finds that permitting defendant to file the cross-complaint will serve the interests of justice. (Code Civ. Proc., § 428.50, subd. (c); Ortiz decl., ¶¶ 7-19, Exhibits A-G.)

Defendant is **DIRECTED** to file their cross-complaint within ten days of hearing, by no later than **April 17, 2026**. (Ortiz decl., ¶ 30, Exhibit K.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.